

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

MARCOS VELILLA and ROMELLO LAVAN

Plaintiff designates BRONX
County as the place of trial.

Plaintiffs,

S U M M O N S

-against-

THE CITY OF NEW YORK,

The basis of venue is
Plaintiff's residence:
2999 Webster Avenue
Bronx, NY 10458

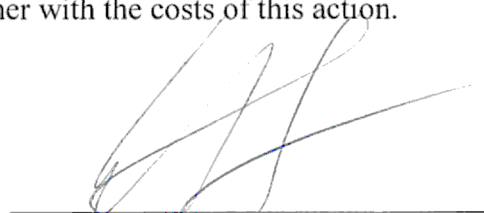
Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York
December 1, 2021



By: **Kurt A. Doiron, Esq.**
SACCO & FILLAS, LLP

Attorneys for Plaintiff

31-19 Newtown Avenue, Seventh Floor
Astoria, New York 11102
Tel: (718) 746-3440
Our File # 25230-20

DEFENDANTS:

THE CITY OF NEW YORK
1 Centre Street
New York, NY 10007

FORWARD THIS IMMEDIATELY TO YOUR ATTORNEY OR INSURANCE COMPANY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARCOS VELILLA and ROMELLO LAVAN

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,

Defendants.

Plaintiff, by his attorneys, SACCO & FILLAS, LLP, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, MARCOS VELILLA, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.
2. The plaintiff, ROMELLO LAVAN, at all times mentioned was and still is a resident of the County of Bronx and State of New York.
3. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

NOTICE OF CLAIM

4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of MARCOS VELILLA, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

5. Prior to the commencement of this action, a notice of claim in writing was served on behalf of ROMELLO LAVAN, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

6. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of MARCOS VELILLA, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

7. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of ROMELLO LAVAN, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

8. Prior to the commencement of this action, notice of the intention of MARCOS VELILLA to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of MARCOS VELILLA upon THE CITY OF NEW YORK.

9. Prior to the commencement of this action, notice of intention of ROMELLO LAVAN to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of ROMELLO LAVAN upon THE CITY OF NEW YORK.

10. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

11. A hearing pursuant to General Municipal Law 50-h has been held.

12. This action is commenced within one (1) year and ninety (90) days, the date of the disposition of wrongful arrest as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

13. Plaintiffs, MARCOS VELILLA and ROMELLO LAVAN incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein

14. On or about October 23, 2017, the plaintiff MARCOS VELILLA was wrongfully arrested for wrongfully arrested under lower court docket number 2017BX041292.

15. On or about November 17, 2017, MARCOS VELILA was indicted under indictment number 2659-2017.

16. On April 13, 2018, MARCOS VELILLA was indicted under indictment number 0802-2018.

17. MARCOS VELILLA's indictment under indictment number 2659-2017 was dismissed with prejudice on or about November 12, 2020.

18. MARCOS VELILLA's indictment under indictment number 0802-2018 was dismissed with prejudice on or about January 28, 2020.

19. On or about October 23, 2017, the plaintiff, ROMELLO LAVAN, was wrongfully arraigned, arrested and imprisoned under docket number 2017BX041291 and 2017BX041293.

20. On or about November 17, 2017, ROMELLO LAVAN was indicted under indictment number 2659-2017.

21. On or about April 12, 2018, ROMELLO LAVAN was indicted under indictment number 0802-2018.

22. ROMELLO LAVAN's indictment under indictment number 2659-2017 was dismissed with prejudice on or about November 12, 2020.

23. ROMELLO LAVAN's indictment under indictment number 0802-2018 was dismissed with prejudice on or about January 28, 2020.

24. At all times herein mentioned, MARCOS VELILLA, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

25. At all times herein mentioned, ROMELLO LAVAN, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

26. At all times herein mentioned, the defendant THE CITY OF NEW YORK, maliciously instituted judicial proceedings without probable cause for doing so, which forced MARCOS VELILLA to expend money and retain an attorney for the scheduled Court hearings.

27. At all times herein mentioned, the defendant THE CITY OF NEW YORK, maliciously instituted judicial proceedings without probable cause for doing so, which forced ROMELLO LAVAN to expend money and retain an attorney for the scheduled Court hearings.

28. The cause of action for malicious prosecution arose on January 28, 2020 for the indictment under indictment number 0802-2018 and November 12, 2020 for the indictment under indictment number 2659-2017, when the criminal actions against MARCOS VELILLA were dismissed in the County of Bronx, City and State of New York.

29. The cause of action for malicious prosecution arose on January 28, 2020 for the indictment under indictment number 0802-2018 and November 12, 2020 for the indictment under indictment number 2659-2017, when the criminal actions against ROMELLO LAVAN were dismissed in the County of Bronx, City and State of New York.

30. The charges were lodged against the plaintiffs without probable cause or justification, and were designed to harass and intimidate the plaintiffs, to cause the plaintiffs to expend great sums of money for their defense, to embarrass the plaintiffs in the community, and among their friends and relatives, employer, and co-employees, and to subject plaintiffs to a possible term of imprisonment.

31. By reason of the malicious prosecution, MARCOS VELILLA and ROMELLO LAVAN were deprived of their liberty and was subjected to scorn and ridicule. Plaintiffs suffered pain and distress of mind and body. Plaintiffs suffered shock and embarrassment. Plaintiffs were arrested, detained, and was required to spend large sums of money to defend themselves against the prosecution in the Criminal Court of The City of New York, and in the proceeding before the State. Petitioner suffered losses from his business and was degraded in the esteem of the community.

32. The defendant's conduct constituted malicious prosecution on the part of the defendant against the plaintiffs, and this malicious prosecution has caused the plaintiffs to undergo extreme mental pain and anguish, humiliation, and damage to their reputation.

33. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendant, THE CITY OF NEW YORK.

34. At all times herein mentioned, MARCOS VELILLA, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

35. At all times herein mentioned, ROMELLO LAVAN, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

36. At all times herein mentioned, the defendant THE CITY OF NEW YORK, maliciously instituted judicial proceedings without probable cause for doing so, which forced MARCOS VELILLA to expend money and retain an attorney for the scheduled Court hearings.

37. At all times herein mentioned, the defendant THE CITY OF NEW YORK, maliciously instituted judicial proceedings without probable cause for doing so, which forced ROMELLO LAVAN to expend money and retain an attorney for the scheduled Court hearings.

38. The proceeding was prosecuted with actual malice against the plaintiff, MARCOS VELILLA.

39. The proceeding was prosecuted with actual malice against the plaintiff, ROMELLO LAVAN.

40. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

41. The plaintiffs, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST
THE DEFENDANTS**

42. Plaintiffs, MARCOS VELILLA and ROMELLO LAVAN, incorporate by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

43. Specifically, on October 23, 2017, MARCOS VELILLA was wrongfully arrested under docket number 2017BX041292.

44. Specifically, on October 23, 201, ROMELLO LAVAN was wrongfully arrested under docket number 2017BX041291 and 2017BX0411293.

45. The charges were lodged against the plaintiffs without parole cause or justification, and were designed to harass and intimidate the plaintiffs, to cause the plaintiffs to expend great sums of money for their defense, to embarrass the plaintiffs in the community, and among their friends and relatives, employer, and co-employees, and to subject plaintiffs to a possible term of imprisonment.

46. The defendant's conduct constituted wrongful arrest on the part of the defendant against the plaintiffs, and this wrongful arrest has caused the plaintiffs to undergo extreme mental pain and anguish, humiliation, and damage to their reputation.

47. At all times herein mentioned, MARCOS VELILLA, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

48. At all times herein mentioned, ROMELLO LAVAN, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

49. At all times herein mentioned, defendant THE CITY OF NEW YORK, arrested the plaintiff without probable cause for doing so, which forced MARCOS VELILLA to expend money and retain an attorney for the scheduled Court hearings.

50. At all times herein mentioned, defendant THE CITY OF NEW YORK, arrested the plaintiff without probable cause for doing so, which forced ROMELLO LAVAN to expend money and retain an attorney for the scheduled Court hearings.

51. By reason of the wrongful arrest, MARCOS VELILLA, was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend large sums of money to defend himself against the prosecution in the Criminal Court of New York County, and in the proceeding before the State. Plaintiff suffered losses and was degraded in the esteem of the community.

52. By reason of the wrongful arrest, ROMELLO LAVAN, was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend large sums of money to defend himself against the prosecution in the Criminal Court of New York County, and in the proceeding before the State. Plaintiff suffered losses and was degraded in the esteem of the community.

53. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

54. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of MARCOS VELILLA as a result of the defendants' wrongful arrest.

55. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more

particularly, the rights, life and safety of ROMELLO LAVAN as a result of the defendants' wrongful arrest.

56. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiffs.

57. The plaintiffs, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

58. That said incident and resulting injuries to the plaintiff, MARCOS VELILLA were caused solely as a result of the unintentional consequence of an intentional act on the part of the arresting officer, without any culpable conduct on the part of the plaintiff, MARCOS VELILLA, contributing thereto.

59. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR WRONGFUL ARREST

60. Plaintiffs, MARCOS VELILLA and ROMELLO LAVAN incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

61. The defendants herein, THE CITY OF NEW YORK wrongfully and maliciously and with intent to injure plaintiffs, prosecuted a criminal action against the plaintiffs.

62. By reason of the foregoing abuse of process, plaintiffs were deprived of their liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.

63. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiffs.

64. The plaintiffs, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION FOR ABUSE OF PROCESS

65. Plaintiffs, MARCOS VELILLA and ROMELLO LAVAN, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

66. That the aforesaid conduct on the part of the defendants, THE CITY OF NEW YORK constituted a violation of the plaintiff, MARCOS VELILLA's civil rights under 42 U.S.C. § 1983 in that the plaintiff was deprived of their rights, privileges and immunities secured to his by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.

67. That the aforesaid conduct on the part of the defendants, THE CITY OF NEW YORK constituted a violation of the plaintiff, ROMELLO LAVAN's civil rights under 42 U.S.C. § 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to his by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.

68. That the aforesaid use of excessive force on the plaintiffs by the defendants, and the subsequent false arrest and imprisonment of the plaintiffs by the defendants, deprived the plaintiffs of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the plaintiffs under the Fourth Amendment to the United States Constitution.

69. That as a result of the aforesaid occurrence, the plaintiff, MARCOS VELILLA, was caused to, and did sustain, severe, serious and protracted injuries to his person and body.

70. That as a result of the aforesaid occurrence, the plaintiff, ROMELLO LAVAN, was caused to and did sustain, severe, serious and protracted injuries to his person and body.

71. Due to defendants' negligence, plaintiffs are entitled to damages in a sum which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST THE DEFENDANTS

72. Plaintiffs, MARCOS VELILLA and ROMELLO LAVAN, incorporate by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

73. Defendants intentionally and deliberately inflicted emotional distress on MARCOS VELILLA by maliciously prosecuting plaintiff, and/or by abusing the lawful process by unlawful purpose, or by violating MARCOS VELILLA's constitutional rights, and/or by falsely arresting and imprisoning the plaintiff, by conspiring against MARCOS VELILLA, and/or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.

74. Defendants intentionally and deliberately inflicted emotional distress on ROMELLO LAVAN by maliciously prosecuting plaintiff, and/or by abusing the lawful process by unlawful purpose, or by violating ROMELLO LAVAN's constitutional rights, and/or by falsely arresting and imprisoning the plaintiff, by conspiring against ROMELLO LAVAN, and/or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.

75. Defendants' conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

76. The actions of the defendants were the cause of MARCOS VELILLA's distress.

77. The actions of the defendants were the cause of ROMELLO LAVAN's distress.

78. MARCOS VELILLA is a reasonable man.

79. ROMELLO LAVAN is a reasonable man.

80. The emotional distress sustained by MARCOS VELILLA was severe and of a nature that no reasonable man could be expected to endure. (Agis v. Howard Johnson Co., 371 Mass. 140, 145 (1976).

81. The emotional distress sustained by ROMELLO LAVAN were severe and of a nature that no reasonable man could be expected to endure. (Agis v. Howard Johnson Co., 371 Mass. 140, 145 (1976).

82. As a result of the defendants' extreme and outrageous conduct, plaintiffs were, are, and, with a high degree of likelihood, will continue to be emotionally distressed due to the intentional actions by the defendants. ("Extreme and outrages conduct is not required if the emotional distress resulted from the commission of another tort." American Velodur Metal, Inc. v. Schinabek. 20 Mass.App.Ct. 460, 470-471 (1985).

83. Defendants, THE CITY OF NEW YORK are liable under the doctrine of *respondeat superior*.

84. As a result of the defendants' extreme and outrageous conduct, plaintiff, MARCOS VELILLA, has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.

85. As a result of the defendants' extreme and outrageous conduct, plaintiff, ROMELLO LAVAN, has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.

86. Due to defendants' negligence, plaintiffs are entitled to damages in a sum which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiffs demand:

A. Judgment awarding damages on the *first cause of action*, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the *second cause of action*, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

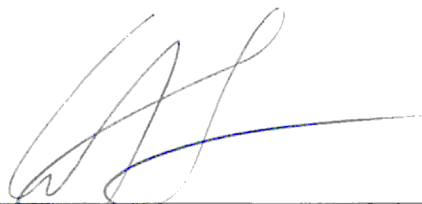
C. Judgment awarding damages on the *third cause of action*, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the *fourth cause of action*, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the *fifth cause of action*, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction; and

G. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: Astoria, New York
December 1, 2021



By: Kurt A. Doiron, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
Tel: (718) 746-3440
Our File # 25230-20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARCOS VELILLA and ROMELLO LAVAN

Plaintiffs,

-against-

THE CITY OF NEW YORK,

Defendants.

Index No.:

**ATTORNEY'S
VERIFICATION**

Kurt A. Doiron, Esq., an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

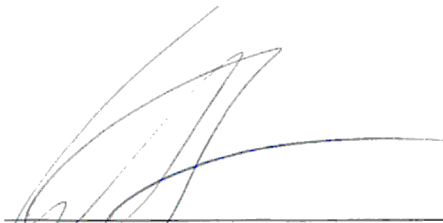
I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

I have read the foregoing SUMMONS & VERIFIED and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Astoria, New York
December 1, 2021


Kurt A. Doiron, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

MARCOS VELILLA and ROMELLO LAVAN

Plaintiffs,

-against-

THE CITY OF NEW YORK,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

*Dated: Astoria, New York
December 1, 2021*

Signature: _____

Kurt A. Doiron, Esq.

SACCO & FILLAS, LLP

Attorneys for Plaintiff

31-19 Newtown Avenue

Seventh Floor

Astoria, New York 11102

Tel: (718) 746-3440

Our File # 25230-20